# Akash vs Pallavi And Another on 28 February, 2024

## Author: Rajeev Misra

## Bench: Rajeev Misra

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HIGH COURT OF JUDICATURE AT ALLAHABAD
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?Neutral Citation No. - 2024:AHC:35760

Court No. - 83

Case :- CRIMINAL REVISION No. - 933 of 2023

Revisionist :- Akash

Opposite Party :- Pallavi And Another

Counsel for Revisionist :- Manoj Kumar Yadav,Raj Kumar Yadav,Satya Prakash

Counsel for Opposite Party :- Chandrajeet,G.A.

Hon'ble Rajeev Misra,J.

1. Heard Mr. Pawan Kumar Pandey, Advocate, holding brief of Mr. Satya Prakash, the learned counsel for revisionist, the learned A.G.A. for State and Mr. Chandrajeet Yadav, the learned counsel representing opposite party 1.

2. Perused the record.

3. This criminal revision has been filed challenging the order dated 29.01.2022, passed by Civil Judge (Junior Division)/F.T.C. IInd Judicial Magistrate, Hapur in Criminal Case No. 634 of 29019/Complaint Case No. 99 of 2020 (Smt. Pallavi Vs. Akash and others) under Section 12 Protection of Women From Domestic Violence Act, 2005, P.S. Hapur Nagar, District Hapur and the order dated 18.1.2023 passed by Additional Sessions Judge/Special Judge (S.C.S.T.) Act, Hapur, in Criminal Appeal No. 09 of 2022 (Akash Vs. Pallavi and another), under Section 29 of the Protection of Women From Domestic Violence Act, 2005, whereby aforementioned appeal arising out of order dated 29.1.2022 and filed by revisionist has been dismissed.

4. The veracity of the orders impugned in present criminal revision is sought to be challenged on the grounds that the revisionist Akash had filed a suit for divorce under Section 13 of the Hindu Marriage Act. The said suit came to be decided, vide judgement and decree dated 29.10.2022 passed by the Principal Judge, Family Court, Hapur, in Matrimonial Petition No. 19 of 2020 (Akash Vs. Smt. Pallavi). Against aforementioned judgement and decree dated 19.10.2022, an appeal was filed by respondent 2 Pallavi in terms of Section 19 of the Hindu Marriage Act, which was registered as First Appeal No. 876 of 2022 (Smt. Pallaviu Vs. Akash) before the High Court. However, the said appeal was got dismissed as withdrawn, vide order dated 15.03.2023. For ready reference, the same is reproduced herein under:-

> "Shri Chandrajeet Yadav, learned counsel appearing for the appellant, submits that the appeal be dismissed as withdrawn.
>
> Order accordingly.
>
> Interim order, if any, stands vacated."

5. Attention of the Court was then invited to the application under Section 127 Cr. P. C. filed by revisionist, wherein it has been stated in paragraph 7 that opposite party 1 has solemnized re-marriage with another person namely Akash on 3.5.2023.

6. On the above premise, what is sought to be contended by the learned counsel for revisionist is that since relationship in between revisionist and opposite party 1 as husband and wife has come to an end, therefore, no maintenance could be claimed by opposite party 1 from the revisionist under the Protection of Women from Domestic Violence Act. In her objections to the said application opposite party 1 has clearly admitted the averments made in paragraph 7 of the aforesaid application that opposite party 1 has re-married. As such, there can be no liability with the revisionist to pay maintenance to opposite parties 2. Court below without adverting to the aforesaid aspect of the matter has passed the orders impugned and therefore, the same are liable to be set aside by this Court. To buttress his submission, the learned counsel for revisionist has invited the attention of the Court to the recital contained at page 24 of the paper book and on basis thereof, he submits that part of the aforementioned facts were placed before the Appellate Court, which passed the order dated 18.1.2023, but the same have been ignored on the ground that the same relate to separate proceedings. It is thus urged that the orders impugned cannot be sustained in law and fact and are liable to be set aside by this Court.

7. Per contra, the learned A.G.A. and the learned counsel representing opposite party 1 have opposed the present criminal revision. They submit that the orders impugned in present criminal revision are perfectly just and legal. Referring to the provisions contained in Section 23 of the Hindu Marriage Act it is urged that even if the wife has been divorced by the husband, yet the liability of the husband to continue to maintain his divorced wife, still subsists subject to the condition that the wife does not solemnize re-marriage. On the above conspectus, they submit that admittedly the divorce decree was passed, vide judgement and decree dated 19.10.2022, whereas order under Section 12 of the Protection of Women From Domestic Violence Act was passed by Court below on

29.1.2022. As such, the same cannot be said to be illegal or erroneous. It is further submitted that in view of the reasonings assigned by the Court below in the another impugned order dated 18.01.2023, the order of appellate court is not liable to be interfered with.

8. After hearing the learned counsel for revisionist, the learned A.G.A. for opposite party 2 and the learned counsel representing opposite party 1, the Court finds that in view of the discussions made, no infirmity can be attached to the order dated 29.1.2022 inasmuch as, re-marriage was solemnized by opposite party 1 on 03.05.2023. As such, the said order is, hereby sustained.

9. With regard to the order dated 18.1.2023 passed by Appellate Court in the appeal filed by the revisionist against order dated 29.01.2022 is concerned, the Court finds that grounds urged before this Court were also raised and pressed before Appellate Court. However, without delving into the same, the court below has simply brushed aside, the same on the vague reasoning that since order passed in divorce proceedings, relates to distinct and separate proceedings, therefore, the same cannot be taken in to consideration in proceedings under Section 12 of the Protection of Women From Domestic Violence Act. Admittedly, the aforesaid recital so occurring in the order passed by the Appellate Court is a bald conclusion bereft of any discussion or reason.

10. A very curious fact has also emerged in these proceedings. The revisionist filed Miscellaneous Case under Section 127 Cr. P. C., which was registered as Case No. 142 of 2022 (Akash Vs. Pallavi and others), arising out of judgement and order dated 21.4.2022 passed in Original Case No. 1112 of 2019 (Pallavi Vs. Akash) under Section 125 Cr. P.C. The cancellation of the order dated 21.4.2022 by the Court which had itself passed that order was primarily prayed on the ground that since opposite party 1 has remarried, which fact was categorically stated in paragraph 7 of the application, therefore, character of opposite party as wife/divorced wife of the revisionist Akash has come to an end. As such, no right subsists in her to claim maintenance from revisionist. The averments made in paragraph 7 of the aforesaid application, were clearly admitted by opposite party 1 Pallavi in paragraph 7 of her objections/written statement. It is by now well settled that admission is the best piece of evidence. The factum of re-marriage by Pallavi opposite party 1 is thus an admitted fact from which she now cannot wriggle out.

11. Therefore, the questions that will arise for determination, on the above conspectus is as to whether in view of the facts as noted above, particularly the fact that the status of opposite party 1 Pallavi has changed as she has solemnized re-marriage, (a) a right subsists in her to claim maintenance from the revisionist under the provisions of Protection of Women From Domestic Violence Act, (b) irrespective of the fact that mother has been divorced by the father, the child who is a minor, if in company of her mother, the liability of the natural father to maintain his minor child will get wiped out because of the factum of re-marriage by the mother.

12. Issue No.-1, which has emerged for consideration in this criminal revision need not detain this Court for a long time. The right of a divorced woman to claim maintenance from her husband under the Protection of Women from Domestic Violence Act, 2005 is no longer res-integra and stand settled by the judgments of Supreme Court in Juveria Abdul Majid Patni Vs. Atif Iqbal Mansoori and Anotyher, (2014) 10 SCC 737 and Prabha Tyagi Vs. Kamlesh Devi, (2022) 8 SCC 90. Therefore, by

virtue of the aforesaid judgments, opposite party 1 shall be entitled to claim maintenance from the revisionist even after the decree of divorce was passed against her by court concerned on 29.10.2022.

However, the fact on which, the present case becomes distinguishable is that opposite party 1 has solemnized re-marriage on 03.05.2023 with another person. On account of above, it cannot be said that there is subsistence of domestic relationship which originated on account of marriage of opposite party 1 with revisionist. In view of re-marriage having been solemnized by opposite party 1, she has now entered into domestic relationship with another person. All legal and moral connections in between opposite party 1 and revisionist now stand terminated. Both the parties are independent entities. In view of above, the inevitable conclusion is that opposite party 1 cannot claim maintenance under the Domestic Violence Act from revisionist from the date of her re-marriage.

13. Reference in this regard be made to the judgment of the Supreme Court in Raveendrababu Vs. Devaki Vijayamma and Another, (1982) 3 SCC 477, wherein Apex Court has held that the wife upon re-marriage is not entitled to claim maintenance.

14. However, the said judgment is not of much help for deciding the controversy in hand inasmuch as, the orders impugned in present criminal revision arise out of proceedings under the Protection of Women from Domestic Violence Act, whereas aforementioned judgement is with reference to Section 125 Cr. P. C.

15. The issue as to whether the wife upon re-marriage is still entitled to claim maintenance under the Protection of Women from Domestic Violence Act came up for consideration in Krishnendu Das Thakur Vs. State of West Bengal and Another, 2019 SCC OnLine Cal 969. The Kolkata High Court in aforesaid judgment after elaborate consideration of the case law on the point has ultimately concluded as follows in paragraph 30 of the report:-

> "Moreover, our law recognises the right of a divorced wife to get maintenance till her remarriage. This Act of 2005 provides additional rights and remedies to the aggrieved person. If the contention of the petitioner is accepted then the wife will be forced to approach before the Magistrate to get maintenance under Section 125 of the Code of Criminal Procedure. What is needed is that the existence of domestic relationship as defined in the Act is necessary to bring an action and to get relief under the Act of 2005. Existence of domestic relationship is not needed to execute the order granted under Section 12 of the Act of 2005 and the divorced wife who got an order of maintenance and other relief under the Act of 2005 prior to the decree of divorce is entitled to execute the same if she is unable to maintain herself and she has not remarried and for other reasons"

16. This Court upon perusal of the said judgment does not find any such reason sufficient enough to disagree from the view taken by the Calcutta High Court.

17. In view of above, it is thus held that the order dated 29.01.2022 passed by Civil Judge (Junior Division)/F.T.C. IInd Judicial Magistrate, Hapur in Criminal Case No. 634 of 29019/Complaint Case No. 99 of 2020 (Smt. Pallavi Vs. Akash and others) under Section 12 Protection of Women From Domestic Violence Act, 2005, P.S. Hapur Nagar, District Hapur is not liable to be interfered with inasmuch as, remarriage was solemnized by opposite party 1 on 03.05.2023 i.e. after above noted judgement. However, in view of the fact that re-marriage was solemnized by opposite party 1, the judgment of the Appellate Court is liable to be modified to the extent that the wife shall be entitled to payment of maintenance from the revisionist only up to the date of her re-marriage i.e. 03.05.2023.

18. Issue No.-2 i.e. irrespective of the fact that mother has been divorced by the father, the child who is a minor, if in company of her mother, the liability of the natural father to maintain his minor child will get wiped out because of the factum of re-marriage by the mother also does not require an in depth analysis inasmuch as, the right of a minor to claim maintenance from his natural father stands decided by the judgment of the Supreme Court in Chandra Shekhar Vs. Swapnil and Others, (2021) 12 SCC 624 wherein, the court has observed as follows in paragraph 8 of the report:-

> "We are inclined to modify the order which has been passed by the Family Court and which has been affirmed by the High Court. This is for the reason that the appellant being an employee of the State Government, his salary slips for the relevant period which are available on the record can safely be relied upon as a true indicator of the income which he earns from his employment with the State. The deductions which are being suffered by the appellant from his salary are largely in the realm of statutory and compulsory deductions which are made from the monthly income. Apart from the statutory deductions, some amount is being deducted towards a loan outstanding which Mr Deshpande submits was obtained to meet the expenses incurred on the ailment of the mother of the appellant. The appellant has shown his bona fides by paying an amount of Rs 6.64 lakhs. He has made a disclosure of his salary slips. The net income being in the range indicated above, payment of Rs 20,000 per month to the first respondent will Crl.A.265-266/2021 leave no resources to maintain his other two children and family. Hence, some scaling down is required. But an arrangement to provide maintenance to the first respondent until he completes the first degree course after High School will be necessary so that the first respondent becomes self-supporting and can live in dignity. Both the learned counsel have been fair and their approach to a human issue needs to be noticed and appreciated. They have truly performed the role of officers of the court."

19. In line with above and in view of the admitted fact that the son Aransh was born out of the wedlock of opposite party 1 and revisionist, therefore, revisionist is the natural father of the minor son, Aransh. Consequently, it is obligatory upon revisionist to maintain his minor son. Accordingly, the revisionist shall continue to pay the amount of maintenance awarded by trial court in favour of the minor Aransh till he completes his degree course or get employment whichever is earlier.

20. In view of the discussion made above, the present criminal revision succeeds in part and is liable to be partly allowed.

21. It is accordingly partly allowed.

22. The order of the appellate court shall now stand modified in terms of the direction mentioned herein under:-

23. The revisionist shall be liable to pay the amount of maintenance payable under the impugned order to opposite party 1 from the date of the order up to the date of her re-marriage i.e. 03.05.2023 only. The revisionist shall further pay a sum of Rs. 2,000/- towards maintenance to his minor son Aransh as directed by the trial court but till he completes his decree course or gets employment whichever is earlier. The other directions issued under the order impugned dated 29.01.2022 shall stand set aside.

23. In the facts and circumstances of the case, there shall be no order as to costs.

Order Date :- 28.2.2024/HSM